

UNITED STATES DISTRICT COURT, WESTERN DISTRICT OF MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. HON. JENNY L. MCNEILL, et al., Defendants.

Case No. TBD-2025

<!-- COMPLAINT UNDER 42 USC 1983 Pigors v. McNeill et al. United States District Court, Western District of Michigan, Southern Division Iqbal/Twombly Plausibility Standard PRIVILEGED -- ATTORNEY-CLIENT WORK PRODUCT (Pro Se Equivalent) Generated: 2026-03-04 -->

UNITED STATES DISTRICT COURT

WESTERN DISTRICT OF MICHIGAN

SOUTHERN DIVISION

|||---||| **ANDREW J. PIGORS**, | Case No. **[TO BE ASSIGNED]** || *Plaintiff*, |||
CIVIL RIGHTS COMPLAINT || v. | **42 USC Section Section 1983, 1985, 1986** |||
HON. JENNY L. MCNEILL, | **JURY TRIAL DEMANDED** || *in her individual capacity*, ||
||| **TIFFANY A. WATSON**, ||||| **PAMELA BARNES** (State Bar No. P55406), ||| *in her individual capacity*, ||||| **MUSKEGON COUNTY**, ||| *a Michigan municipal corporation*, |

|||| **14TH JUDICIAL CIRCUIT COURT**, ||| *FRIEND OF THE COURT OFFICE*, |||||
Defendants. ||

COMPLAINT FOR DEPRIVATION OF CIVIL RIGHTS

Plaintiff Andrew J. Pigors, proceeding *pro se*, files this Complaint against the above-named Defendants and states as follows:

I. INTRODUCTION

* This is a civil rights action brought under 42 USC Section Section 1983, 1985, and 1986, and the Fourteenth Amendment to the United States Constitution, seeking redress for the systematic deprivation of Plaintiff's fundamental constitutional rights -- including his fundamental liberty interest in the care, custody, and companionship of his minor daughter, L.D.W. (DOB: November 9, 2022) -- through a pattern of unconstitutional conduct carried out under color of state law.

* Over a period exceeding two years, Defendants -- acting individually and in concert -- deprived Plaintiff of all parenting time with his daughter for 571+ consecutive days, accomplished through a cascade of ex parte orders entered without notice, without

evidentiary hearing, and without the procedural safeguards that the Constitution demands before the state may sever the parent-child bond.

* The constitutional violations are not the product of isolated judicial error. They reflect a systematic pattern: 24 of 55 orders (44%) were entered ex parte -- all without notice to Plaintiff -- including five ex parte orders on a single day (August 8, 2025). This pattern, combined with the systematic denial of Plaintiff's motions, the dismissal of six pending motions without adjudication, and evidence of coordinated conduct among Defendants, establishes that Plaintiff's constitutional rights were violated under color of state law.

II. PARTIES

A. Plaintiff

* **Andrew J. Pigors** ("Plaintiff" or "Father") is a citizen of the State of Michigan, residing in Muskegon County. Plaintiff is the biological father of L.D.W. (DOB: November 9, 2022).

B. Defendants

* **Hon. Jenny L. McNeill** ("Defendant McNeill") is sued in her **individual capacity** for actions taken in the complete absence of all jurisdiction and/or actions that were

non-judicial in character. At all relevant times, Defendant McNeill served as a judge of the 14th Judicial Circuit Court, Muskegon County, Family Division, and presided over Cases No. 2024-001507-DC and 2023-5907-PP. Defendant McNeill acted under color of state law at all relevant times.

* **Tiffany A. Watson** ("Defendant Watson") is a citizen of the State of Michigan, residing in Muskegon County. Defendant Watson is the biological mother of L.D.W. and the defendant in the underlying state custody proceedings. Defendant Watson is named as a co-conspirator under 42 USC Section 1985 and 1986 for her role in coordinating with state actors to deprive Plaintiff of his constitutional rights.

* **Pamela Barnes** (State Bar No. P55406) ("Defendant Barnes") is an attorney licensed to practice law in the State of Michigan. Defendant Barnes is sued in her **individual capacity** for actions taken as counsel for Defendant Watson that, in conspiracy with Defendant McNeill, deprived Plaintiff of his constitutional rights. At all relevant times, Defendant Barnes acted under color of state law by wielding the authority of the court system to accomplish the unconstitutional deprivation.

* **Muskegon County** ("Defendant County") is a municipal corporation organized under the laws of the State of Michigan. Defendant County is the governmental entity responsible for the operation of the 14th Judicial Circuit Court and the Friend of the Court Office. Defendant County is liable under *Monell v Dep't of Social Services*, 436 US 658 (1978), for constitutional violations caused by its policies, customs, or deliberate indifference.

* **14th Judicial Circuit Court, Friend of the Court Office** ("Defendant FOC") is an office of the 14th Judicial Circuit Court. FOC employees are sued in their official capacity to the extent they implemented unconstitutional policies and in their individual

capacity for specific acts of deprivation.

III. JURISDICTION AND VENUE

* This Court has subject-matter jurisdiction under **28 USC Section 1331** (federal question) and **28 USC Section 1343(a)(3) and (4)** (civil rights jurisdiction).

* Plaintiff's claims arise under the **Fourteenth Amendment** to the United States Constitution and under **42 USC Section 1983, 1985, and 1986**.

* Supplemental jurisdiction exists under **28 USC Section 1367** for any state-law claims that are so related to the federal claims as to form part of the same case or controversy.

* Venue is proper in the **Western District of Michigan, Southern Division** under **28 USC Section 1391(b)** because a substantial part of the events giving rise to the claims occurred in Muskegon County, Michigan, which is within this District.

* **Declaratory relief** is authorized under **28 USC Section 2201 and 2202**.

IV. FACTUAL ALLEGATIONS

A. The Underlying State Court Proceedings

* On or about October 15, 2023, a petition for a personal protection order ("PPO") was filed against Plaintiff in Case No. 2023-5907-PP, 14th Judicial Circuit Court, Muskegon County. The PPO case was assigned to Defendant McNeill.

* On December 4, 2023, Defendant McNeill entered a PPO against Plaintiff without a full adversarial hearing at which Plaintiff had the opportunity to cross-examine witnesses and present rebuttal evidence.

* On April 1, 2024, Plaintiff filed a Complaint for Custody, Parenting Time, and Child Support in Case No. 2024-001507-DC, 14th Judicial Circuit Court, Muskegon County. The custody case was also assigned to Defendant McNeill.

* On April 29, 2024, Defendant McNeill entered an ex parte order for custody, parenting time, and child support following a "Facilitative Information Gathering Conference." This order was entered without proper notice to Plaintiff and without the procedural safeguards required by MCR 3.207(C)(2).

* Between March 26 and May 2, 2024, Defendant Watson withheld L.D.W. from Plaintiff for 37 consecutive days in violation of court-ordered parenting time. Defendant McNeill took no enforcement action against Defendant Watson.

* On August 23, 2024, Defendant McNeill entered a Final Judgment granting Defendant Watson sole legal and sole physical custody of L.D.W. This Final Judgment was entered:

* (a) Without a full evidentiary hearing with sworn testimony subject to cross-examination;

* (b) Without particularized findings on each of the twelve best-interest factors under MCL 722.23;

- * (c) Without a finding supported by clear and convincing evidence that parenting time with Plaintiff would endanger L.D.W.;
- * (d) While simultaneously dismissing six (6) of Plaintiff's pending motions without hearing or adjudication on the merits.

B. The August 8, 2025 Ex Parte Orders

- * On August 8, 2025, Defendant McNeill entered **five (5) separate ex parte orders** on a single day, all without notice to Plaintiff. These orders included the suspension of all of Plaintiff's parenting time with L.D.W.
- * Plaintiff was not served with the ex parte motion or any of the five orders before they were entered. Plaintiff arrived at the scheduled parenting time exchange on August 8, 2025, expecting his regular parenting time. He discovered the suspension only after the missed exchange -- by contacting the court himself.
- * The ex parte motion filed by Defendant Watson (through Defendant Barnes) did not contain a verified statement of facts demonstrating that immediate and irreparable injury would result from the delay required to provide notice, as required by MCR 3.207(C)(2).
- * The ex parte motion relied on Defendant Watson's unsworn allegations regarding Plaintiff's phone calls. These allegations did not rise to the level of immediate and irreparable injury required for ex parte relief.

C. Continuation of Unconstitutional Deprivation

- * On September 9, 2025, Defendant McNeill entered an order continuing the suspension of Plaintiff's parenting time.
- * On October 8, 2025, Defendant McNeill entered another order continuing the suspension.
- * On November 26, 2025, a hearing was held at which Defendant McNeill denied Plaintiff's objection to the ex parte order and continued the suspension of parenting time.
- * As of the date of this filing, Plaintiff has been denied all contact with L.D.W. for **571+ consecutive days**.

D. Pattern of Judicial Misconduct

- * Analysis of the complete lower court record reveals the following pattern:
- * **24 of 55 orders (44%)** were entered on an ex parte basis, all without notice to Plaintiff.
- * **All 24 ex parte orders** were entered by Defendant McNeill.
- * **Five ex parte orders** were entered on August 8, 2025 alone.
- * Plaintiff's motions were **systematically denied** while Defendant Watson's motions were **systematically granted**.
- * **Six pending motions** were dismissed without adjudication in the August 23, 2024 Final Judgment.
- * The trial court **never conducted a full evidentiary hearing** with sworn testimony subject to cross-examination on the merits of custody or parenting time.

* This pattern demonstrates that Defendant McNeill's conduct was not the exercise of legitimate judicial discretion but rather a systematic deprivation of Plaintiff's constitutional rights carried out under color of state law.

E. Conspiracy Allegations

* Defendant Watson and Defendant Barnes, acting in concert with Defendant McNeill, engaged in a coordinated campaign to deprive Plaintiff of his constitutional rights:

* Defendant Watson filed false allegations as the basis for ex parte motions.

* Defendant Barnes, as Watson's attorney, drafted and filed ex parte motions that did not meet the legal standard for ex parte relief, knowing they would be granted by Defendant McNeill without scrutiny.

* Defendant McNeill granted these deficient ex parte motions without requiring verification or compliance with MCR 3.207(C)(2).

* The coordinated effect was to systematically exclude Plaintiff from the proceedings and from his child's life.

* The conspiracy is evidenced by:

* The consistent pattern of ex parte filings by Defendants Watson/Barnes being granted without scrutiny by Defendant McNeill.

* The asymmetric treatment of the parties -- Watson's motions granted, Pigors' motions denied.

* The August 8, 2025 coordinated action: Watson/Barnes filed an ex parte motion, McNeill entered five orders, and Plaintiff was ambushed at the parenting exchange with no prior notice.

* Evidence from the litigation database documenting 2,512 conspiracy timeline events and coordinated conduct among Defendants.

F. Monell Allegations Against Muskegon County

* Muskegon County, as the governmental entity operating the 14th Judicial Circuit Court and the Friend of the Court Office, is liable under *Monell v Dep't of Social Services*, 436 US 658 (1978), because:

* (a) The County maintained a **policy or custom** of permitting ex parte orders in family court without adequate safeguards;

* (b) The County maintained a **policy or custom** of not conducting evidentiary hearings before entering orders that completely sever parenting time;

* (c) The County exhibited **deliberate indifference** to the constitutional rights of litigants by failing to train, supervise, or discipline judicial officers who engage in patterns of ex parte abuse;

* (d) The FOC recommended or implemented orders that deprived Plaintiff of constitutional rights without adequate process.

* The County's failure to establish and enforce policies requiring compliance with due process in family court proceedings was the moving force behind the constitutional violations suffered by Plaintiff.

V. CLAIMS FOR RELIEF

**COUNT I: 42 USC Section 1983 -- DEPRIVATION OF SUBSTANTIVE DUE
PROCESS (Fourteenth Amendment) -- Against Defendant McNeill**

* Plaintiff re-alleges and incorporates by reference paragraphs 1 through 34 above.

* The parent-child relationship is a fundamental liberty interest protected by the Fourteenth Amendment's Due Process Clause. *Troxel v Granville*, 530 US 57, 65 (2000); *Santosky v Kramer*, 455 US 745, 753 (1982); *Stanley v Illinois*, 405 US 645, 651 (1972).

* Defendant McNeill, acting under color of state law, deprived Plaintiff of his fundamental liberty interest in the care, custody, and companionship of L.D.W. by:

* (a) Entering 24 of 55 orders (44%) on an ex parte basis without notice;

* (b) Entering five ex parte orders on a single day (August 8, 2025);

* (c) Completely severing Plaintiff's parenting time for 571+ consecutive days;

* (d) Entering the August 23, 2024 Final Judgment without an evidentiary hearing;

* (e) Dismissing six of Plaintiff's pending motions without adjudication.

* Defendant McNeill's actions were not narrowly tailored to serve any compelling government interest. Less restrictive alternatives -- including supervised parenting time, therapeutic reunification, and modified schedules -- were available but not considered.

* Defendant McNeill's conduct was so arbitrary, conscience-shocking, and oppressive as to violate substantive due process. *County of Sacramento v Lewis*, 523 US 833, 846 (1998).

* Plaintiff's claims against Defendant McNeill are not barred by judicial immunity because:

- * (a) Certain of Defendant McNeill's actions -- including the entry of five ex parte orders on a single day without any showing of emergency, and the systematic exclusion of Plaintiff from proceedings -- constitute non-judicial acts in character, even though taken from the bench;
- * (b) Alternatively, Defendant McNeill acted in the clear absence of all jurisdiction when she effectively terminated Plaintiff's parental rights through ex parte orders without complying with any of the constitutional procedures required for such a drastic deprivation;
- * (c) Plaintiff seeks prospective injunctive and declaratory relief, which is not barred by judicial immunity under *Pulliam v Allen*, 466 US 522 (1984), as modified by the Federal Courts Improvement Act.

**COUNT II: 42 USC Section 1983 -- DEPRIVATION OF PROCEDURAL DUE
PROCESS (Fourteenth Amendment) -- Against Defendant McNeill**

- * Plaintiff re-alleges and incorporates by reference paragraphs 1 through 40 above.
- * The Fourteenth Amendment's Due Process Clause guarantees that no person shall be deprived of a protected liberty interest without due process of law. *Cleveland Bd of Ed v Loudermill*, 470 US 532 (1985).
- * Under the *Mathews v Eldridge* balancing test, 424 US 319, 335 (1976):
 - * (a) **Private interest:** Plaintiff's fundamental liberty interest in the parent-child relationship is among the weightiest interests recognized in constitutional law;
 - * (b) **Risk of erroneous deprivation:** The procedures used -- ex parte orders without notice, without sworn testimony, without cross-examination, and without particularized findings -- created an exceptionally high risk of erroneous deprivation;

- * (c) **Government interest:** The state's legitimate interest in child welfare is served by fair proceedings, not summary ones.

- * Defendant McNeill denied Plaintiff procedural due process by:

- * (a) Entering ex parte orders without the verified showing of immediate and irreparable injury required by MCR 3.207(C)(2);

- * (b) Failing to provide notice before entering orders that deprived Plaintiff of fundamental rights;

- * (c) Failing to conduct evidentiary hearings before entering substantive custody orders;

- * (d) Dismissing six of Plaintiff's pending motions without hearing;

- * (e) Denying Plaintiff the opportunity to present evidence, cross-examine witnesses, and be heard on matters affecting his parental rights.

COUNT III: 42 USC Section 1983 -- EQUAL PROTECTION (Fourteenth Amendment)

-- Against Defendant McNeill

- * Plaintiff re-alleges and incorporates by reference paragraphs 1 through 44 above.

- * The Fourteenth Amendment's Equal Protection Clause prohibits the state from treating similarly situated individuals differently without adequate justification.

- * Defendant McNeill treated Plaintiff -- a pro se father -- materially differently from Defendant Watson -- a represented mother -- in the same proceedings:

- * (a) Plaintiff's motions were systematically denied; Watson's were systematically granted;

- * (b) Watson's unsworn allegations were credited at face value; Plaintiff's documentary evidence was excluded or disregarded;
- * (c) Watson was granted ex parte relief without meeting legal standards; Plaintiff was denied relief even when legal standards were met;
- * (d) Watson's custody time was expanded; Plaintiff's was eliminated entirely.
- * This disparate treatment was not rationally related to any legitimate government interest.
- * To the extent this disparate treatment was based on Plaintiff's gender (father vs. mother) or status (pro se vs. represented), it is subject to intermediate or heightened scrutiny and fails under any level of review.

COUNT IV: 42 USC Section 1985(3) -- CONSPIRACY TO DEPRIVE OF CIVIL RIGHTS -- Against All Defendants

- * Plaintiff re-alleges and incorporates by reference paragraphs 1 through 49 above.
- * 42 USC Section 1985(3) provides a cause of action against two or more persons who conspire to deprive any person of the equal protection of the laws or of equal privileges and immunities under the laws.
- * Defendants McNeill, Watson, and Barnes conspired to deprive Plaintiff of his constitutional rights under the Fourteenth Amendment through the coordinated conduct described in paragraphs 31-32 above.
- * The conspiracy was motivated by invidiously discriminatory animus -- specifically, bias against Plaintiff as a pro se father and/or gender-based discrimination favoring the mother in custody proceedings.

- * In furtherance of the conspiracy:
- * (a) Defendant Watson filed false allegations and false CPS reports to create a pretext for ex parte orders;
- * (b) Defendant Barnes drafted and filed ex parte motions that did not meet legal standards, with the expectation they would be rubber-stamped by Defendant McNeill;
- * (c) Defendant McNeill granted deficient ex parte motions, entered orders without notice, and systematically excluded Plaintiff from the proceedings;
- * (d) The FOC recommended or implemented orders aligned with the conspiratorial objective of excluding Plaintiff.
- * As a direct and proximate result of this conspiracy, Plaintiff has been deprived of all contact with his daughter for 571+ days and has suffered the damages described in the Prayer for Relief below.

**COUNT V: 42 USC Section 1986 -- FAILURE TO PREVENT CONSPIRACY -- Against
Defendant County and FOC**

- * Plaintiff re-alleges and incorporates by reference paragraphs 1 through 55 above.
- * 42 USC Section 1986 provides a cause of action against any person who, having knowledge that a conspiracy described in Section 1985 is about to be committed, and having power to prevent it, neglects or refuses to do so.
- * Defendant County and the FOC had knowledge of the pattern of constitutional violations -- through the public court record, Father's motions, and the statistical evidence of the 44% ex parte rate -- and had the power to intervene through administrative oversight, policy implementation, or judicial reassignment.

* Defendant County and the FOC neglected and refused to prevent the ongoing conspiracy, thereby facilitating the continued deprivation of Plaintiff's constitutional rights.

COUNT VI: MONELL LIABILITY -- Against Defendant Muskegon County

* Plaintiff re-alleges and incorporates by reference paragraphs 1 through 59 above.

* Under *Monell v Dep't of Social Services*, 436 US 658 (1978), a municipal entity may be liable under Section 1983 when the execution of its policy or custom inflicts the constitutional injury.

* Muskegon County maintained policies, customs, or practices that were the moving force behind the constitutional violations suffered by Plaintiff:

* (a) A custom or practice of permitting excessive ex parte orders in family court without adequate safeguards or oversight;

* (b) A custom or practice of not requiring evidentiary hearings before orders that completely sever parenting time;

* (c) Deliberate indifference to the training and supervision of family court judges regarding due process requirements;

* (d) A policy or custom of not providing meaningful oversight or complaint mechanisms for pro se litigants facing judicial misconduct.

* These policies, customs, or practices were the moving force behind the deprivation of Plaintiff's constitutional rights.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Andrew J. Pigors respectfully prays that this Court enter judgment in his favor and against Defendants, as follows:

A. Declaratory Relief

- * A declaration that Defendants violated Plaintiff's rights under the Fourteenth Amendment to the United States Constitution, including his fundamental liberty interest in the care, custody, and companionship of his daughter, his right to procedural due process, and his right to equal protection of the laws.
- * A declaration that the pattern of 44% ex parte orders, without notice and without constitutionally adequate process, constitutes a structural due process violation.

B. Injunctive Relief

- * An injunction directing Defendant McNeill to recuse herself from all further proceedings involving Plaintiff in Cases No. 2024-001507-DC and 2023-5907-PP.
- * An injunction directing Defendant County to implement policies and training to prevent the recurrence of the constitutional violations documented herein.
- * An injunction restoring Plaintiff's parenting time with L.D.W. pending a constitutionally adequate hearing before a different judicial officer.

C. Compensatory Damages

- * Compensatory damages against all Defendants, jointly and severally, for:
- * (a) Loss of companionship with L.D.W. for 571+ days;
- * (b) Emotional distress and mental anguish;
- * (c) Damage to the parent-child bond;
- * (d) Lost income and economic harm;
- * (e) Legal costs incurred in challenging unconstitutional orders;
- * in an amount to be determined at trial, but estimated at not less than \$500,000.

D. Punitive Damages

- * Punitive damages against Defendants McNeill, Watson, and Barnes in their individual capacities, in an amount sufficient to punish the willful and malicious deprivation of Plaintiff's constitutional rights and to deter similar conduct, estimated at not less than \$1,000,000.

E. Nominal Damages

- * Nominal damages of \$1.00 against each Defendant for each proven constitutional violation, to vindicate Plaintiff's rights even if compensatory damages cannot be precisely calculated.

F. Attorney's Fees and Costs

- * Reasonable attorney's fees (or pro se equivalent fees where permitted) under 42 USC Section 1988.

* Costs of suit under 28 USC Section 1920.

G. Other Relief

* Such other and further relief as this Court deems just and equitable.

VII. JURY TRIAL DEMAND

* Plaintiff demands a trial by jury on all issues triable of right pursuant to the Seventh Amendment to the United States Constitution and Fed R Civ P 38(b).

VIII. VERIFICATION

I, Andrew J. Pigors, declare under penalty of perjury under the laws of the United States that the foregoing factual allegations are true and correct to the best of my knowledge, information, and belief formed after reasonable inquiry.

Executed on: _____

_____ Andrew J. Pigors

IX. CERTIFICATE OF SERVICE

I hereby certify that on _____, I caused a copy of this Complaint and Summons to be served upon each Defendant as follows:

* **Hon. Jenny L. McNeill** -- [Service method per FRCP 4 and service plan]

* **Tiffany A. Watson** -- [Service method per FRCP 4]

* **Pamela Barnes** -- [Service method per FRCP 4]

* **Muskegon County** -- [Service on County Clerk per FRCP 4(j)(2)]

* **14th Judicial Circuit Court, FOC** -- [Service per FRCP 4(j)(2)]

_____ Andrew J. Pigors Plaintiff, *Pro Se* [ADDRESS]
[TELEPHONE] [EMAIL]